letter dispatched on 8 February 2013 is meaningless. The letter was delivered to the family in Kashmir two days after his execution!

In March–April 2012, the Supreme Court heard petitions by two death convicts—Devender Pal Singh Bhullar and Narender Nath Das—on the validity of carrying out executions after mercy petitions were delayed for eight to eleven years. The court considered the cases of other death row convicts whose executions were prolonged and directed the Government of India to give details and files relating to the convicts. The government then gave the details of the death row convicts whose mercy petitions were pending with the President of India.

Legality of Prolonged Delay

One of the pending cases was that of Afzal Guru. The Supreme Court appointed me as amicus curiae to consider the larger question of the execution of convicts after inordinate delay. In the course of my submissions, I referred in particular to the facts of the Afzal Guru case. The hearing concluded on 19 April 2012, and judgement was reserved in the case. The government was fully aware that the legality of prolonged delay in the execution of convicts was pending consideration by the Supreme Court. It was incumbent upon the government to await the authoritative pronouncement of the Supreme Court on the pending petitions but the government carried out the execution of Afzal Guru on 9 February 2013.

Overall, Afzal Guru's execution will remain the most callous death sentence carried out by the Government of India.

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